



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 19, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201905111 regarding P.O. Ronald Kennedy, Tax No. [REDACTED] (DADS No. 2021-23068), P.O. Robert Uribe, Tax No. [REDACTED] (DADS No. 2021-23069), and Lieutenant Francisco Lopez, Tax No. [REDACTED] (DADS No. 2021-23070)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Police Officer Kennedy and Police Officer Uribe were faced with a challenging and ever-evolving situation upon their arrival at the scene of a reported violent Emotionally Disturbed Person. The officers found themselves in close quarters and faced with an individual with a self-reported history of mental illness who threw a metal trashcan at them. As a result, the officers had to restrain this individual for her safety, as well as the safety of other individuals present at the scene.

The decision to restrain this individual caused another emotionally disturbed individual at the scene to grow combative and to push Police Officer Kennedy in the back. As a result, for his safety, and the safety of others, Police Officer Kennedy had no choice but to restrain this individual. It must be noted that this second individual also has a self-reported history of mental illness.

Lieutenant Lopez, who held the rank of Sergeant at the time of this incident, determined that both individuals could be a harm to themselves or others and ordered that both be removed to local hospitals for evaluation as emotionally disturbed persons. This decision by Lieutenant Lopez was based on the totality of the circumstances at the scene as well as interviews with Police Officer Uribe and Police Officer Kennedy.

COURTESY • PROFESSIONALISM • RESPECT

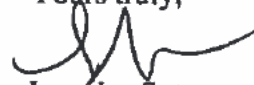
Website: <http://nyc.gov/nypd>

It is undisputed that, while being removed from the apartment and from the common hallway, the first individual's bare chest became exposed. However, during the chaotic situation, the officers did not expose the individual's private areas and did not prevent anyone from immediately covering up the individual. Indeed, both times the individual's exposed chest was quickly covered up by the individual's mother and a neighbor thus limiting the duration of the *accidental* exposure. Accordingly, the actions of Police Officer Uribe and Police Kennedy were not discourteous to the individual.

Therefore, the Police Commissioner directs that Police Officer Kennedy, Police Officer Uribe, and Lieutenant Lopez receive No Disciplinary Action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office